

Daya Ram Awasthi v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 26 November 2021 · Writ - C No. 30656 of 2021 · **Writ dismissed; electricity bill relegated to Clause 6.5.**

HEADNOTE

A writ challenging an electricity bill was dismissed. The consumer's remedy is to approach the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Daya Ram Awasthi petitioned the Allahabad High Court against Dakshinanchal Vidyut Vitran Nigam Ltd. and two others, challenging an electricity bill. Counsel appeared for the distribution company. The Division Bench did not inquire into the correctness of the bill or any connected facts. It recorded that the petitioner's remedy was to approach the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and dismissed the writ on that alternative remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

electricity bill — alternative remedy

HOLDING

A writ petition raising a dispute about an electricity bill is dismissed on the ground of alternative remedy; the petitioner is to approach the Executive Engineer concerned by invoking Clause 6.5 of the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ against an electricity bill dismissed because Clause 6.5 supplies the alternative of approaching the Executive Engineer. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The Court treated Clause 6.5 as the statutory forum for the bill dispute and refused to decide it in writ. ¶ 1

6.5-representation-as-appropriate-remedy The appropriate remedy stated on the face of the order is a representation to the Executive Engineer under Clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

The Court did not examine the bill and relegated the petitioner to Clause 6.5. ¶ 1